

- 8.c) While there are commonalities in the recognition of marriage as a social institution, the idea of a universal definition of marriage poses several problems. Comment. (15 marks)

Marriage is a social institution which is universal. However the idea of universality in its definition is still not realized.

**WESTERMARCK** defines marriage as an institution or a union between a man with one or more women which is recognized by customs or law and which involves certain rights and duties both in case of parties entering the union and in the case of children born into it.

However **Exceptions**

- Women - Women Marriage.
- Ghost Marriage of Tibet.
- NAYAR marriage.

**MURDOCK** defines marriage as a union characterized by economic-co-operation, common co-habitation

and reproduction.

### Exception

- NAYAR - No common residence.  
no economic co-operation.
- Marriage not necessary to carry out reproductive functions for en concubinage society of China gets progeny without marriage

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defines

marriage as a union between man and a woman such that the children born to them are recognized as legitimate offspring of both parents.

### Exception

- Polygyny & Polyandry.
- EDMUND LEACH does not take into account of plural marriage.
- women - women marriage.

Kathleen Gough

gave the definition which is inclusive of NAYARS, WOMEN - WOMEN

marriage, ghost marriage.

She defines marriage as:  
relationship established between a woman & one or more partners such that the child born out of it not prohibited by the rules of the relationship is accorded full birth right status common to normal members of society.

However exception

- ↳ Homosexual marriage.
- ↳ Concubinage.
- ↳ Cattle marriage of BANTU.

EDMUND LEACH sets the debate that marriage is a bundle of rights, not every right found in every society. Thus universal definition framing exercise is in vain.